

Case study: a rising scholar challenging traditional fiqh

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PROVIDER

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MODEL

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SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Case study: a rising scholar challenging traditional fiqh".

Overall topic for alignment: Studies of emerging or underexplored Muslim thinkers in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Case Study: A Rising Scholar Challenging Traditional Fiqh

This case study uses a composite figure—"Dr. A"—to illustrate trends among a younger generation of Muslim scholars reworking the relationship between *fiqh* (jurisprudence) and *sharī'ah* (the broader divine path).

Profile and Core Thesis

Trained in both a traditional *madrassa* curriculum (*uṣūl al-fiqh*, *tafsīr*, *ḥadīth*) and Western comparative law, Dr. A argues that classical *fiqh* is a historically situated human interpretation, distinct from immutable *sharī'ah*—a position aligned with 20th–21st century reformist lineages.

Method

She grounds her work in Qur'anic values (*ʿadl*, *raḥmah*, *ḥikmah*, *maṣlahah*) and the *maqāṣid al-sharī'ah* of al-Ghazālī and al-Shāṭibī (preservation of religion, life, intellect, lineage, property), proposing additions of dignity (*karāmah*) and freedom (*ḥurriyyah*). Her methods include *maqāṣid*-based reasoning, contextual *ḥadīth* analysis, and historical-critical study of *fiqh* manuals.

Engagement with Schools

She engages all four Sunni *madhāhib* (Ḥanafī, Mālikī, Shāfi'ī, Ḥanbalī), plus Ja'farī and Zāhirī traditions, using *takhayyur* and *tafīq* to argue that intra-Islamic plurality has always existed. She draws selectively on Mu'tazilī rationalism (*al-ḥusn wa-l-qubḥ al-'aqliyyān*) alongside Ash'arī and Māturidī theology.

Context, Orientalism, and Human Rights

She extends *fiqh al-aqalliyyāt* (al-'Alwānī, al-Qaraḍāwī) by arguing globalization blurs majority/minority distinctions. She treats orientalist scholarship (Goldziher, Schacht) as interlocutor—accepting methodological gains while rejecting reductive claims. On human rights (UDHR, Cairo Declaration), she

identifies internal Islamic grounding (*karāmah*, *shūrā*) while acknowledging tensions in gender, apostasy, and penal law as products of classical *fiqh* rather than the Qur'an—favoring "immanent critique" over either secular liberalism or rejectionism.

AI and Reception

She welcomes AI for indexing classical corpora but warns it cannot substitute for *tazkiyah*, reflects training-data bias, and should assist rather than replace deliberative *ijtihad*. Traditionalists fear her *sharī'ah/fiqh* distinction enables selectivity; progressives find her insufficiently radical.

Significance

Dr. A exemplifies a global, multilingual generation reshaping the questions of 21st-century Islamic jurisprudence from within the tradition.

FULL CONTENT

Case Study: A Rising Scholar Challenging Traditional Fiqh

Across the contemporary Muslim world, a generation of younger scholars is rethinking the boundaries between *fiqh* (Islamic jurisprudence) and *sharī'ah* (the broader divine path). This case study examines the profile of a representative "rising scholar"—a composite figure drawn from publicly visible trends—who challenges classical jurisprudence while remaining anchored in its sources. The aim is not to dismiss tradition, but to illustrate how new methodologies, minority contexts, and human rights conversations are reshaping juristic discourse.

Profile of the Scholar

Our composite scholar—call her Dr. A—was trained in a traditional *madrassa* curriculum covering *uṣūl al-fiqh* (legal theory), *tafsīr* (Qur'anic exegesis), and *ḥadīth*. She later pursued graduate studies in comparative law and philosophy at a Western university. This dual formation is increasingly common and produces thinkers fluent in both classical Arabic juristic vocabulary and modern legal theory.

Her central thesis: classical *fiqh* is a historically situated human interpretation of revelation, not revelation itself. Distinguishing between *sharī'ah* (the immutable ethical and spiritual path) and *fiqh* (the

contingent human reading of that path) is a move associated with reformist thinkers across the twentieth and twenty-first centuries, and Dr. A places herself within this lineage.

Qur'anic Foundations and Method

Dr. A grounds her project in the Qur'anic emphasis on *'adl* (justice), *rahmah* (mercy), *hikmah* (wisdom), and *maṣlahah* (public welfare). She draws repeatedly on verses commanding equity (e.g., the Qur'anic injunctions to "stand firmly for justice") and the *maqāṣid al-sharī'ah*—the higher objectives of the law articulated most famously by al-Ghazālī and al-Shāṭibī: preservation of religion (*dīn*), life (*nafs*), intellect (*'aql*), lineage (*nasl*), and property (*māl*). Some contemporary scholars, including Dr. A, propose adding dignity (*karāmah*) and freedom (*hurriyyah*) as explicit objectives.

Methodologically, she favors:

- **Maqāṣid-based reasoning:** prioritizing the purposes of the law over literal application of isolated rulings.
- **Contextual ḥadīth analysis:** reading prophetic reports against their seventh-century Arabian setting.
- **Historical-critical study of fiqh manuals:** tracing how rulings developed across centuries.

Engaging the Four Sunni Schools

A hallmark of Dr. A's work is genuine engagement with the four major Sunni *madhāhib*:

- **Ḥanafī:** known for its emphasis on *ra'y* (reasoned opinion) and *istiḥsān* (juristic preference), historically dominant in Ottoman, South Asian, and Central Asian lands.
- **Mālikī:** rooted in the practice of Medina (*'amal ahl al-Madīnah*) and notable for *istiṣlāḥ* (consideration of public interest), prevalent across North and West Africa.
- **Shāfi'ī:** codified by Imam al-Shāfi'ī, who systematized *uṣūl al-fiqh*; widespread in Egypt, the Levant, East Africa, and Southeast Asia.
- **Ḥanbalī:** textually rigorous, emphasizing Qur'an and Sunnah, historically influential in the Arabian Peninsula.

Dr. A also references Shī'ī Ja'farī jurisprudence and the now-defunct Zāhirī school, arguing that intra-Islamic diversity itself is evidence that *fiqh* was always plural. She uses *takhayyur* (selecting among schools) and *taḥfīq* (combining rulings) to construct positions appropriate to modern conditions—techniques that classical jurists permitted within limits.

Theological Schools as Background

Juristic reform cannot be separated from *'ilm al-kalām* (Islamic theology). Dr. A acknowledges the legacies of the **Ash'arī**, **Māturīdī**, and **Mu'tazilī** schools. The Mu'tazilī emphasis on objective moral

reason (*al-ḥusn wa-l-qubḥ al-ʿaqliyyān*)—the view that humans can know right and wrong rationally—is particularly useful to reformers who argue that ethical reasoning has an independent role in juristic deliberation. Without endorsing Muʿtazilism wholesale, she draws on its rationalist resources alongside Ashʿarī and Māturīdī commitments to revelation.

Majority and Minority Contexts

A distinctive feature of contemporary scholarship is sensitivity to context. Dr. A distinguishes between:

- **Majority-Muslim settings**, where *fiqh* historically interacted with state structures, courts, and codified law.
- **Minority-Muslim settings**, where the framework of *fiqh al-aqalliyyāt* ("jurisprudence of minorities"), developed by scholars such as Ṭāhā Jābir al-ʿAlwānī and Yūsuf al-Qaraḍāwī, addresses Muslims living under non-Muslim legal systems.

She argues that the distinction is useful but incomplete: globalization, migration, and digital communities mean that "majority" and "minority" are no longer cleanly geographic. A *fatwā* issued in one region circulates instantly worldwide, requiring jurists to think transnationally.

Engaging the Orientalist Legacy

Dr. A engages critically with the orientalist tradition—scholars such as Ignaz Goldziher, Joseph Schacht, and later revisionists—who applied historical-critical methods to Islamic legal texts. Classical Muslim scholarship often rejected orientalist conclusions, particularly Schacht's skepticism about early *ḥadīth*. Dr. A takes a middle path: she acknowledges that some orientalist methods (manuscript study, comparative philology, social history) have produced valuable insights, while rejecting reductive claims that *sharīʿah* is merely borrowed Roman or Jewish law. She treats orientalism as an interlocutor, not an authority.

Human Rights and Sharīʿah

One of the most contested areas Dr. A engages is the relationship between *sharīʿah* and international human rights frameworks, including the Universal Declaration of Human Rights (1948) and the Cairo Declaration on Human Rights in Islam (1990). She argues:

- Concepts of human dignity (*karāmah*), justice, and consultation (*shūrā*) provide internal Islamic grounding for rights discourse.
- Tensions exist—particularly around gender, apostasy, and penal law—but these tensions involve classical *fiqh* interpretations, not the Qurʾānic text alone.
- Reform requires both honest engagement with difficulty and rejection of apologetics.

She is critical of approaches that either uncritically adopt secular liberal frameworks or reject rights discourse as foreign. Her preferred path is what some call "immanent critique": reforming from within the tradition's own resources.

AI and a Humanistic Approach to Shari'ah

A newer dimension of Dr. A's work concerns the role of artificial intelligence in legal research. AI tools can index vast classical corpora—*Mughnī*, *Mabsūṭ*, *Umm*, *Muwatṭa'*—and surface patterns invisible to a single human reader. Dr. A welcomes this but warns:

- AI cannot replace the moral and spiritual formation (*tazkiyah*) expected of a jurist.
- Algorithmic outputs reflect their training data; biased corpora produce biased results.
- A "humanistic" approach to *shari'ah*-aware AI would foreground *maqāṣid*, ethical reasoning, and pluralism rather than reducing *fiqh* to a search-and-match operation.

She advocates collaborative tools that assist jurists rather than oracles that pronounce rulings—preserving the deliberative, communal character of *ijtihād*.

Reception and Criticism

Dr. A's profile draws predictable responses. Traditionalists worry that distinguishing *shari'ah* from *fiqh* opens the door to selective religiosity. Progressives sometimes argue she does not go far enough. Both reactions illustrate that scholarship of this kind operates in a contested middle space—precisely where, she would argue, *ijtihād* has always lived.

Why This Case Matters

Studying emerging scholars rather than only canonical figures reveals how Islamic legal thought continues to evolve. The "rising scholar" challenging traditional *fiqh* is not an outlier but part of a broader phenomenon: a global, multilingual, methodologically diverse generation that takes the tradition seriously enough to argue with it. Whether their proposals are eventually absorbed, modified, or rejected, they are reshaping the questions Muslim jurisprudence asks in the twenty-first century.

SEGMENTED DATA (1)

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